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Resource Management Reform: Cabinet Paper Released

24 October 2024

This week the Government proactively released its Cabinet Paper on replacing the Resource Management Act 1991, providing further detail about what the new system might look like.

“The Paper reveals some interesting teasers about what’s to come for the environment, some of which give us a glimmer of hope,” says EDS CEO Gary Taylor.

“Cabinet has confirmed that replacement law should make it easier to get things done while also safeguarding the environment. This ‘double bottom line’ concept is set to deliver development “within environmental limits” to be set by Regional Councils for “air, water, soils, biodiversity and the coastal environment.”

“Cabinet has agreed that the resource management system should “protect the natural environment”. That is reassuring.

“There is a lot of detail to unpack, but the starting position offers plenty of opportunity to do good things. Cabinet has agreed that place-based tools should be used to protect Significant Natural Areas, Outstanding Natural Landscapes and Natural Features.

“Long-term spatial planning (out to 50 years) is on the table, which will help overcome our infrastructure deficit and housing shortage. Constraints mapping is also part of the picture, with Cabinet referencing natural hazards and public open spaces as potential no-go areas for development.

“A lot of the detail is about fixing longstanding procedural issues with the existing system and can build upon solutions from the repealed Natural and Built Environment and Spatial Planning Acts. Cabinet appears to be taking a pragmatic view in that regard, which we support.

“The Paper raises some concerns and questions that need to be answered, such as what the scope of the new law should be, how environmental limits should be set, how integration will be achieved, and how cumulative effects will be addressed in a more permissive regime.

“EDS’s primary objective is to ensure that our natural world is properly protected in the new system and we will be looking for ways to achieve that. Our research team, led by Dr Greg Severinsen, will be working hard with key stakeholders to make sure we get workable and enduring law out of this reform process, concluded Mr Taylor.

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Read the Cabinet Paper [here](#).

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